tion, 150 Broadway, New York 7, New York, an affidavit setting out the following amounts of sugar owned by him at 11:59 p. m., September 17, 1946:

(1) The total number of pounds of raw cane sugars (including cane juice and its derivatives in the process of being made into raw cane sugar) adjusted to a 96 degree polarization basis.

(2) The total number of pounds of refined turbinado and washed sugar.

(3) The total number of pounds of raw sugar (converted to a refined basis) in process of refinement.

If any part of a refiner's inventory consists of sugars acquired from a mill other than a mill owned or controlled by him, the refiner must specify how much of the amounts of sugar described in subparagraphs (1), (2) and (3) of this paragraph consists of such outside sugar.

(d) *Payment to Commodity Credit Corporation.* Any person (other than a wholesaler or retailer) owning cane sugars at 11:59 p. m., September 17, 1946, who elects to sell at the increased maximum prices on September 18, 1946, shall make a statement to that effect in the affidavit described in paragraph (c) of this section and shall make payment by check or money order payable in New York funds to the Commodity Credit Corporation in an amount computed as follows:

(1) The total number of pounds of refined, turbinado and washed cane sugar, plus the total number of pounds of cane sugar (converted to a refined basis) in process of refinement, plus the total number of pounds of cane sugar (converted to a turbinado basis) in process of conversion to turbinado, multiplied by 1.47 cents per pound; plus

(2) The total number of pounds of raw cane sugars (including cane juice and its derivatives in the process of being made into raw cane sugar) adjusted to a 96 degree polarization basis, multiplied by 1.37 cents per pound.

Payment may be made at the time of filing the affidavit or monthly payments shall be made within 60 days following the close of the calendar month for the amount of such sugar sold during such month, until the full amount due has been paid. The maximum price in event of failure to make such payment or payments, shall be the maximum price in effect prior to September 18, 1946.

(e) *Election to sell inventory at lower price.* Any person owning cane sugars at 11:59 p. m., September 17, 1946, may, in lieu of making payment to Commodity Credit Corporation, described in paragraph (d) of this section, elect to sell or otherwise dispose of the entire amount of his inventory at or below his maximum prices in effect on September 17, 1946. Such person shall state in the affidavit described in paragraph (c) of this section that he elects to sell his inventory at the lower price. At such time as he has sold an amount equal to his September 17 inventory, he shall file by registered mail with the Commodity Credit Corporation a final affidavit stating that he has fully complied with the requirements of this paragraph (e).

After mailing the final affidavit in proper form such person may sell at the maximum prices set out in paragraphs (a) and (b) of this section.

(f) *Notification to wholesalers and retailers when election is made to sell inventory at lower price.* (1) Any refiner or processor who elects to sell his inventory at or below his maximum prices in effect on September 17, 1946, shall, at the time of, or prior to the first delivery to each wholesaler or retailer, notify them in writing to the effect that the prices charged are the refiner's maximum prices in effect September 17, 1946.

(2) Any wholesaler who receives the notification described in subparagraph (1) of this paragraph shall, at the time of, or prior to the first delivery to each retailer, notify the retailer in writing to the effect that the prices charged are the wholesaler's maximum prices in effect on September 17, 1946.

This amendment shall become effective for producers of raw and refined sugar as of 12:01 a. m., August 13, 1947, and for wholesalers and retailers as of August 13, 1947.

(Pub. Law 30, 80th Cong.)

Issued this 13th day of August 1947.

[SEAL] N. E. DODD,
Acting Secretary of Agriculture.

Statement of the Considerations Involved in the Issuance of Amendment 11 to Third Revised Maximum Price Regulation 183

The accompanying amendment increases the maximum price of raw cane and refined granulated sugars for local consumption in Puerto Rico. On August 6, 1947, maximum prices of raw cane sugar were increased on the mainland 13½ cents per hundredweight and of refined sugar 15 cents per hundredweight through Amendment 7 to MPR 16 and Amendment 12 to MPR 60, respectively. Reference to the statement of considerations accompanying these amendments is hereby made. The same increases are made effective in Puerto Rico under this amendment for the same reasons the previous increases granted on the mainland were made applicable to Puerto Rico, as explained in the earlier statements of considerations.

The new prices are calculated to return to distributors no less than the average percentage mark-ups as were in effect on March 31, 1946, and are in accord with and will effectuate the purposes of the Emergency Price Control Act of 1942, as amended and extended.

[F. R. Doc. 47-7718; Filed, Aug. 15, 1947; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 392]

NEW MEXICO

REVOKING EXECUTIVE ORDER 1032 OF FEBRUARY 25, 1909, SO FAR AS IT RELATES TO CARLSBAD NATIONAL WILDLIFE REFUGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 1032, dated February 25, 1909, is hereby revoked so far as it relates to the establishment of the Carlsbad Reservation, New Mexico, the designation of which was changed to the Carlsbad National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940.

The lands involved, including both public and non-public lands lying within and adjacent to Lake McMillan and the Avalon Reservoir, aggregate approximately 18,679.66 acres.

All public lands restored by this order are covered by first form reclamation withdrawal and are not subject to entry.

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

AUGUST 11, 1947.

[F. R. Doc. 47-7690; Filed, Aug. 15, 1947; 8:45 a. m.]

TITLE 46—SHIPPING

Chapter II—United States Maritime Commission

Subchapter F—Merchant Ship Sales Act of 1946

[Gen. Order 60, Supp. 7, Amdt. 1]

PART 299—RULES AND REGULATIONS, FORMS, AND CITIZENSHIP REQUIREMENTS

PREWAR DOMESTIC COSTS; STATUTORY SALES PRICES

Section 299.56 *Prewar domestic costs; statutory sales prices* is amended as follows:

That portion of paragraph (z) as revised by Supplement 7 insofar as is applicable to the C2-S1-AJ4 type vessel (published in the FEDERAL REGISTER of September 28, 1946, 11 F. R. 11076) is deleted and in lieu thereof the following revised figures are inserted for purposes of adjustment for prior sales to citizens in accordance with section 9 of the act. No vessel of this type is available for disposal.

Type	Prewar domestic cost	Domestic war cost
C2-S1-AJ4 combination cargo-passenger	$3,194,606	$3,993,258

Type	Unadjusted statutory sales price	Floor price
C2-S1-AJ4 combination cargo-passenger	$1,597,303	$1,397,640

(60 Stat. 41)

By order of the United States Maritime Commission.

A. J. WILLIAMS,
Secretary.

JULY 29, 1947.

[F. R. Doc. 47-7716; Filed, Aug. 15, 1947; 8:47 a. m.]